

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MACLIFF WOODLEY,

Plaintiff,

-against-

THE CITY OF NEW YORK, DETECTIVE SPECIALIST
WILLIAM P. REDDIN, Shield No. 18523, POLICE
OFFICER BRIAN J. HELLBERG, Tax No. 944641,
SERGEANT MICHAEL MILLER, Tax No. 921596, and
POLICE OFFICERS JOHN DOES #1-4,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above-named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: New York, New York
October 5, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: The City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
DETECTIVE SPECIALIST WILLIAM P. REDDIN, Shield No. 18523, 81st Precinct, 30
Ralph Avenue, Brooklyn, New York 11221

POLICE OFFICER BRIAN J. HELLBERG, Tax No. 944641, 81st Precinct, 30 Ralph Avenue, Brooklyn, New York 11221

SERGEANT MICHAEL MILLER, Tax No. 921596, 81st Precinct, 30 Ralph Avenue, Brooklyn, New York 11221

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff MACLIFF WOODLEY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. The claims arise from an incident that occurred on October 5, 2016 at approximately 2:50 am as plaintiff was lawfully walking home across the street from the vicinity of 701 Quincy Street, Brooklyn, New York, when Defendants, acting under the color of state law, subjected plaintiff to an unlawful stop, question, frisk, and search, and falsely arrested and imprisoned plaintiff. Thereafter, plaintiff was unlawfully strip searched at the 81st Precinct, maliciously prosecuted and denied the right to due process/ right to a fair trial by the defendant police officers when they maliciously initiated a criminal prosecution against plaintiff, without probable cause, when they communicated false, misleading, and incomplete information to the District Attorney's Office about their factual basis for stopping, searching, and arresting plaintiff and charging him with crimes. Defendants signed a criminal court complaint containing the false allegations, which was used to initiate the criminal prosecution against plaintiff. The City of New York was aware at the time of the incident that the defendant police officers had length histories of violating the Constitutional Rights of members of the public and falsifying evidence against individuals which had been documented by criminal court judges, complaints made by the public, Federal Judges in Civil Rights cases, and the officers were being investigated for their misconduct by the Kings County District Attorney's Office, but the City of New York was deliberately indifferent to the defendants' previous misconduct and permitted the officers to continue arresting members of the

public while doing nothing to stop them from violating the Constitutional Rights of members of the public. The deliberate indifference by The City of New York caused plaintiff's Constitutional Rights to be violated by defendants on October 5, 2016. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested/ imprisoned, maliciously prosecuted, , unlawfully strip searched plaintiff, and denied plaintiff the right to due process/ a fair trial, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Macliff Woodley is a resident of the state of New York.

3. Defendant DETECTIVE SPECIALIST WILLIAM P. REDDIN, Shield No. 18523, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. Defendant DETECTIVE SPECIALIST WILLIAM P. REDDIN, Shield No. 18523, is and was at all times relevant herein, assigned to the 81st Precinct.

5. Defendant DETECTIVE SPECIALIST WILLIAM P. REDDIN, Shield No. 18523 is being sued in his individual and official capacity.

6. Defendant POLICE OFFICER BRIAN J. HELLBERG, Tax No. 944641, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. Defendant POLICE OFFICER BRIAN J. HELLBERG, Tax No. 944641, is and was at all times relevant herein, assigned to the 81st Precinct.

8. Defendant POLICE OFFICER BRIAN J. HELLBERG, Tax No. 944641 is being sued in his individual and official capacity.

9. Defendant SERGEANT MICHAEL MILLER, Tax No. 921596, 81st Precinct, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. Defendant SERGEANT MICHAEL MILLER, Tax No. 921596, 81st Precinct, is and was at all times relevant herein, assigned to the 81st Precinct.

11. Defendant SERGEANT MICHAEL MILLER, Tax No. 921596, 81st Precinct, is being sued in his individual and official capacity.

12. Defendants New York City Police Officers John Does # 1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Defendants Police Officers John Does # 1-4 are being sued in their individual and official capacities.

14. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant The City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On October 5, 2016 at approximately 2:50 am plaintiff was lawfully walking home across the street from the vicinity of 701 Quincy Street, Brooklyn, New York, when the individually named defendant NYPD officers, acting under the color of state law, unlawfully stopped, questioned, frisked, searched, and falsely arrested plaintiff without reasonable suspicion, probable cause, or any legal justification.

19. At no time prior to stopping plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

20. At no time did plaintiff commit a crime, nor did the defendant police officers have an objective factual basis to believe he committed a crime or violated a law or statute on October 5, 2016.

21. At no time was plaintiff in possession of any illegal drugs, weapons, or contraband of any kind on October 5, 2016, nor did the defendant police officers have an objective reason to believe plaintiff possessed illegal drugs, weapons, or contraband of any kind at the time of the stop.

22. As plaintiff was lawfully walking home across the street from the vicinity of 701 Quincy Street, Brooklyn, New York, without cause or legal justification an unmarked police vehicle containing defendants pulled in front of plaintiff, defendants exited the vehicle, and the defendants told plaintiff that there was a shooting up the block and asked plaintiff what he was doing.

23. Plaintiff advised the officers that he was walking home and he pointed to his building which was located within view of the stop.

24. The defendants proceeded to frisk and search plaintiff without his consent, reasonable suspicion, probable cause or any legal justification and recovered a legal pocketknife from plaintiff's front pocket.

25. The defendants justified the unlawful stop and search of plaintiff by falsely alleging that their basis for stopping and searching plaintiff was because they observed a clip of the outside of his pants that is commonly used to carry knives.

26. At no time relevant herein did plaintiff have a clip on the outside of his pants, nor was his legal pocketknife clipped to his pants as falsely alleged by the defendant police officers.

27. The police officers lacked reasonable suspicion, probable cause or any legal justification to stop and search plaintiff, even based upon the defendants false allegations that they observed a clip on the outside of plaintiff's pants which is commonly used to carry knives because the clip described by the officers is used to carry both lawful and unlawful knives and does not provide the officers with any factual basis to suspect that the individual is engaged in criminal or unlawful behavior or that he possesses an unlawful knife. See People v. Cruz, 963 NYS 2d 506 (NY Court of Appeals April 8, 2013)

28. The defendants' unlawful search of plaintiff without any legal justification failed to recover any illegal weapons, drugs or contraband from plaintiff.

29. Upon recovering the legal pocketknife from plaintiff's pocket, the defendants asked plaintiff for identification, took plaintiff's government issued identification and ran plaintiff's name to search whether there were any active warrants for plaintiff.

30. The defendants verified that plaintiff did not have any active warrants, but the defendants unlawfully refused to release plaintiff from their custody and falsely arrested plaintiff.

31. The defendant police officers unlawfully handcuffed plaintiff and falsely arrested him without legal justification or probable cause to believe plaintiff committed any crime or offense.

32. The defendant officers unlawfully transported plaintiff to the 81st Precinct whereat he was unlawfully strip searched, fingerprinted, and photographed before he was transported to Kings County Central Booking whereat his detention continued for many hours.

33. The defendant police officers provided the Kings County District Attorney's Office with a false narrative about why the officers stopped, searched, and arrested plaintiff.

34. Specifically, the defendant police officers falsely advised the District Attorney's Office that they recovered an alleged illegal knife from plaintiff's person that was more than 4 inches long.

35. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff on October 6, 2014, and legal process against plaintiff was commenced when plaintiff was arraigned in Kings County Criminal Court and was falsely charged with the crime of Criminal Possession of a Weapon in the Fourth Degree (PL 265.01(1)) and Possession of Knives or Instruments With a Blade of Four Inches or More (AC 10-133(B)), without probable cause.

36. On October 6, 2014, after approximately 24 hours in police custody, plaintiff was arraigned in Kings County Criminal Court, falsely charged with the crimes without probable cause, and he was released from court under supervised release.

37. Thereafter, plaintiff was forced to appear for supervised release on numerous occasions and to Court on approximately 14 occasions.

38. All charges brought against plaintiff were terminated in his favor and dismissed and sealed in their entirety on December 20, 2017 after (a) the Court Ordered the District Attorney's Office to produce the defendant officers' lengthy records of alleged and substantiated misconduct as police officers and evidence that defendants repeatedly violated the Constitutional Rights of members of the public and also evidence that defendants overtly changed their testimony in criminal cases in order to support their conduct as police officers toward the defendant and to support the charges they brought against defendants, (b) the District Attorney's Office produced the lengthy disciplinary histories to plaintiff's criminal defense attorney, and (c) the District Attorney's Office affirmatively moved to dismiss all charges brought against plaintiff because it lacked evidence to support continuing a prosecution against plaintiff and could not prove its case beyond a reasonable doubt.

39. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, strip search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ fair trial against plaintiff.

40. Defendant City of New York was aware of the lengthy documentation and evidence supporting allegations that the defendant police officers were repeatedly violating the

Constitutional Rights of members of the public, repeatedly falsified evidence in criminal cases and falsely testified in criminal court cases, but was deliberately indifferent to the defendants' repeated misconduct and permitted the officers to continue patrolling the 81st Precinct and members of the precinct's anticrime team.

41. As a direct result of defendant City of New York's deliberate indifference to the defendants' misconduct, defendants continued to violate the Constitutional Rights of members of the public, were patrolling on duty as NYPD officers on October 5, 2014 and violated plaintiff's Constitutional Rights on that date when they subjected plaintiff to an unjustifiable stop, question, frisk, search, strip search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ fair trial.

42. Defendant City of New York was aware and place on notice of its well documented and long standing policy and/or practice, which was active on October 5, 2014, of being deliberately indifferent and failing to discipline or retrain police officers' who engage in police misconduct and unconstitutional behavior toward members of the public because there have been hundreds of complaints filed by members of the public against the City of New York and its police officers in Federal District Court, NY State Supreme Courts located in each borough within the confines of New York City, with the NYPD's Internal Affairs Bureau, and with the Civilian Complaint Review Board alleging that NYPD officers continue to violate the Constitutional Rights of members of the public.

43. Plaintiff's Constitutional Rights were violated by defendants as a direct and proximate cause of the City of New York's policy and practice of deliberate indifference toward NYPD officers' engagement in police misconduct and unconstitutional behavior.

44. The unlawful stop, question, frisk, search, strip search, false arrest, false imprisonment, malicious prosecution, and denial of the right to due process/ fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, and Fourteenth Amendment Rights

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, unlawfully strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to due process and a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due

process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

47. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.

48. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

49. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to constitutional, physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

52. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 51 with the same force and effect as if more fully set forth at length herein.

53. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

54. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

55. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search and Strip Search

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants, underneath his clothing, and the search of plaintiff without his clothing at the 81st Precinct employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search and/or strip search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the Constitution of the United States.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

66. Defendants commenced and continued a criminal proceeding against plaintiff.

67. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

68. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

69. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment, and Fourteenth Amendment Rights

Denial of Right to Fair Trial

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 70 with the same force and effect as if more fully set forth at length herein.

72. Defendants, individually and collectively, manufactured false evidence and forwarded this false evidence to and/or withheld evidence from prosecutors in the Kings County District Attorney's Office.

73. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

74. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

75. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments to the Constitution of the United States.

76. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

77. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

80. Defendants failed to intervene to prevent the unlawful conduct described herein.

81. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of defendant City of New York, which is forbidden by the Constitution of the United States.

85. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department included, but were not limited to, illegally stopping, questioning, searching, and arresting individuals without a specific, articulable factual basis supporting reasonable suspicion and/or probable cause that plaintiff committed a crime and fabricating allegations against an individual, as well as inadequate screening, hiring, retaining, training, failing to discipline, and supervising its employees with respect to these issues.

86. The aforementioned customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the violation of plaintiff's rights as described herein. As a result of the failure of defendant City of New York and the New York City Police Department to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

87. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

88. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

89. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, plaintiff was unlawfully stopped, questioned, searched and arrested.

90. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional rights.

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JURY DEMAND

91. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Macliff Woodley demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages, costs and reasonable attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 5, 2019

By: /s/

DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 5, 2019

/s/

DAVID M. HAZAN